

of the sanction unjust. (Code Civ. Proc. § 2025.450.) Here, sanctions are appropriate. Volvo's unexplained failure to appear on 11.03.25, inaccurate scheduling objection regarding the 7.21.26 date, and failure to offer another PMK or firm date defeat substantial justification. Plaintiffs request \$2,000 in sanctions and support it with counsel's declaration showing 5 hours at \$400 per hour (including 2 anticipated hours for reviewing opposition papers and hearing appearance.) This is not unreasonable.

Plaintiffs' Motion to Compel Deposition of Person Most Knowledgeable with Production of Documents GRANTED in PART.

Defendant Volvo Cars of North America ordered to produce a Person(s) Most Knowledgeable for deposition within 30 days.

Defendant's PMK to answer Deposition Categories 1-10. Plaintiffs' request for Categories 11 and 12 DENIED without prejudice.

Parties are ordered to meet and confer regarding the document production issues and submit a declaration 10 days prior to the hearing date addressing what documents are still in dispute.

The motion for the Request for Production of Documents shall be continued to 11.04.26.

Sanctions awarded in the amount of \$2000 to be payable to Plaintiffs' attorney within 30 days.

Trial Setting Conference continued to 11.04.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508414	MAUL VS VERISMA SYSTEMS, INC.	MOTION TO DISMISS COMPLAINT OF KIMBERLY MAUL BY VERISMA SYSTEMS, INC.

Tentative Ruling: This is an employment dispute brought by Plaintiff Kimberly Maul against Defendant Verisma Systems, Inc. Verisma previously moved the court to dismiss this action on the grounds of improper venue pursuant to CCP section 418.10(a)(2).

Only July 10, 2026, the court denied that motion as the motion was brought pursuant to CCP section 418.10(a)(2), which made the motion was untimely, noting that a proper motion needed to be brought pursuant to CCP section 410.30.

Now Defendant Verisma moves the court to dismiss the Complaint for improper venue pursuant to CCP section 410.30 on the grounds that Plaintiff is not a resident of California, never evinced her intent to permanently reside in California, paid almost no employment taxes to California, specifically requesting to pay taxes to the State of Georgia, and filed and received unemployment benefits in the State of Georgia.

In opposition, Plaintiff Maul asserts that this court heard and denied Defendant's motion to dismiss and now seeks a second bite at the apple with its renewed motion to dismiss for improper venue without complying with CCP section 1008(b). Further, despite Defendant's offer to stipulate to waive the statute of limitations defense, Georgia remains

an inadequate forum and the balance of public and private interests favors continuing her matter in California courts. Plaintiff argues that Georgia is an inadequate forum because Plaintiff's claims are time-barred and she is unable to exhaust administrative remedies as Georgia requires prospective plaintiffs to file a Charge of Discrimination with the EEOC within 180 days of the incident.

In reply, Defendant Verisma asserts that the opposition confirms that this dispute belongs in Georgia, where Plaintiff resides, where Defendant is headquartered, and where Defendant's witnesses, records, and the evidence concerning Plaintiff's employment and termination are located. Plaintiff Maul's contention that her claims are time-barred in Georgia is answered by Defendant's stipulation to waive that defense — and, to remove any doubt, Defendant consents to a conditional dismissal on terms the Court deems just. Her administrative-exhaustion argument rests on Georgia statutes that govern only public employers and have nothing to do with this private-employer dispute.

This is not a renewal of the prior motion, which was improperly made under CCP section 418.10 rather than having been made under CCP section 410.30. The two motions have different standards and therefore, to ensure that Plaintiff's due process rights were protected the court declined to rule on the prior motion as if it had been properly made under section 410.30 or act on its own motion.

Defendant Verisma now moves pursuant to CCP section 410.30, which provides “[w]hen a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” (CCP §410.30(a).)

“The doctrine of forum non conveniens is rooted in equity. It allows a court to decline to exercise its jurisdiction over a case when it determines that the case ‘may be more appropriately and justly tried elsewhere.’ [Citation.] The Legislature endorsed the application of this principle by enacting section 410.30, As explained in the Judicial Council's comment to this section, the provision ‘authorizes a court to decline to exercise its jurisdiction in appropriate instances on the ground that the plaintiff has unfairly or unreasonably invoked the jurisdiction of an inconvenient forum.’ ” (*Fox Factory, Inc. v. Superior Court* (2017) 11 Cal.App.5th 197, 203.)

There is a two-step analysis for the court's analysis in ruling on this motion. (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744.) First, the court must determine whether the alternate forum is a “suitable” place for trial of the issues. If it is, then the court is to “consider the private interests of the litigants and the interests of the public in retaining the action for trial in California.” (*Fox Factory, Inc. v. Superior Court* (2017) 11 Cal.App.5th 197, 203.)

The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” [Citations.] Also, of potential concern is “the interest in trying the case in a forum familiar with the applicable law, and the interest in avoiding

unnecessary conflicts of laws.” [Citation.] These public and private interests are to be “applied flexibly, without giving undue emphasis to any one element.” [Citation.]

(*Fox Factory, Inc. v. Superior Court* (2017) 11 Cal.App.5th 197, 203-204.) The burden of proof is on Defendant with regard to this two-step analysis. (*Stangvik, supra*, 54 Cal.3d at 751.)

The facts in this case reflect that the private and public interest factors weigh in favor of Georgia as the proper forum. All of the parties and witnesses reside in Georgia. The fact that Maul believes that California law may apply does not change the fact that California is not a convenient forum for this action. In addition, venue in Georgia does not foreclose the application of California law if properly applicable. Determination of a more convenient venue is not a determination that Georgia law must be applied. If proper, Georgia courts may apply California law.

Defendant’s Motion to Dismiss for Improper Venue Pursuant to CCP 410.30 GRANTED.

Dismissal is conditioned upon stipulation by Defendant to a waiver of any statute of limitations and timeliness defenses that would bar Plaintiff’s claims in Georgia.

Defendant’s Revised Proposed Order submitted to the court on 8.31.26 shall be signed and approved.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2603447	GERMINARO VS GELLER	DEMURRER ON COMPLAINT OF MASSIMO GERMINARO BY MARC B GELLER, NANCUE GELLER

Tentative Ruling:

No opposition filed.

Defendants’ Demurrer to the 1st, 2nd, 3rd and 4th Causes of Action SUSTAINED with leave to amend.

Plaintiff to file amended complaint within 30 days.

Case Management Conference remains set for 11.19.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2605173	MCGLAMARY VS HALLVIEW MANAGEMENT COMPANY, INC., A CALIFORNIA CORPORATION	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE) BY HALLVIEW MANAGEMENT COMPANY, INC., A CALIFORNIA CORPORATION

Tentative Ruling: No tentative ruling. Hearing continued to 9.30.26.